



Bill Number: H.B. 2075

Diaz Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires each school, rather than school district governing board, to submit to the Arizona Department of Education (ADE):
 - a) a copy of the employment contract for each individual employed as the equivalent of a superintendent or chief financial officer (CFO) during the preceding five years, or an attestation stating that the school has not employed such individuals during the preceding five years; and
 - b) a copy of the employment contract for each individual currently employed as the equivalent of a superintendent or CFO, or an affidavit stating the employment contract for such individuals is the same as the contract submitted in the immediately preceding year.
2. Defines *school* as:
 - a) a school district;
 - b) a charter school;
 - c) a county accommodation school; or
 - d) a qualified school that accepts Empowerment Scholarship Account monies for tuition and fees.
3. Requires ADE to post all contracts that a school, rather than school district, submits to ADE on ADE's website and on the prescribed searchable online employment contract database.
4. Requires each school, rather than school district governing board, to post on the school's website each employment contract submitted to ADE as outlined.
5. Makes technical and conforming changes.

DIAZ FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2075
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 15, chapter ~~[5-]~~[1], article 1, Arizona Revised
3 Statutes, is amended by adding section ~~[15-503.01]~~[15-120.08], to read:

4 ~~[15-503.01.]~~[15-120.08.] Superintendents; assistant
5 superintendents; associate superintendents;
6 chief financial officers; employment contracts;
7 posting requirements; annual report; definition

8 A. [NOTWITHSTANDING SECTIONS 15-161 AND 15-2404.] EACH SCHOOL
9 ~~[DISTRICT GOVERNING BOARD]~~ SHALL SUBMIT TO THE DEPARTMENT OF EDUCATION
10 BOTH OF THE FOLLOWING:

11 1. EITHER:

12 (a) A COPY OF THE EMPLOYMENT CONTRACT, INCLUDING ANY EXTENSION OR
13 AMENDMENT TO THE CONTRACT, FOR EACH INDIVIDUAL WHO HAS BEEN EMPLOYED BY
14 THE SCHOOL ~~[DISTRICT]~~ DURING THE PRECEDING FIVE SCHOOL YEARS AS A
15 SUPERINTENDENT, AN ASSISTANT SUPERINTENDENT, AN ASSOCIATE
16 SUPERINTENDENT~~[.]~~ [OR] A CHIEF FINANCIAL OFFICER [OR AN EQUIVALENT OF A
17 SUPERINTENDENT, AN ASSISTANT SUPERINTENDENT, AN ASSOCIATE SUPERINTENDENT
18 OR A CHIEF FINANCIAL OFFICER].

19 (b) AN ATTESTATION STATING THAT THE SCHOOL ~~[DISTRICT]~~ HAS NOT
20 EMPLOYED ~~[A SUPERINTENDENT, AN ASSISTANT SUPERINTENDENT, AN ASSOCIATE~~
21 ~~SUPERINTENDENT OR A CHIEF FINANCIAL OFFICER]~~ [AN INDIVIDUAL IN A POSITION
22 DESCRIBED IN SUBDIVISION (a) OF THIS PARAGRAPH] DURING THE PRECEDING FIVE
23 SCHOOL YEARS.

24 2. EITHER:

25 (a) A COPY OF THE EMPLOYMENT CONTRACT, INCLUDING ANY EXTENSION OR
26 AMENDMENT TO THE CONTRACT, FOR EACH INDIVIDUAL WHO IS CURRENTLY EMPLOYED
27 ~~[AS A SUPERINTENDENT, AN ASSISTANT SUPERINTENDENT, AN ASSOCIATE~~
28 ~~SUPERINTENDENT OR A CHIEF FINANCIAL OFFICER]~~ [IN A POSITION DESCRIBED IN
29 PARAGRAPH 1 OF THIS SUBSECTION] NOT LATER THAN THIRTY DAYS AFTER THE DATE

1 ON WHICH THE SCHOOL ~~[DISTRICT]~~ ENTERED INTO THE CONTRACT OR APPROVED THE
2 EXTENSION OR AMENDMENT TO THE CONTRACT.

3 (b) AN AFFIDAVIT STATING THAT THE EMPLOYMENT CONTRACT OF ~~[THE~~
4 ~~SUPERINTENDENT, ASSISTANT SUPERINTENDENT, ASSOCIATE SUPERINTENDENT OR~~
5 ~~CHIEF FINANCIAL OFFICER, AS APPLICABLE,]~~ [THE INDIVIDUAL WHO IS CURRENTLY
6 EMPLOYED IN A POSITION DESCRIBED IN PARAGRAPH 1 OF THIS SUBSECTION] IS THE
7 SAME AS THE EMPLOYMENT CONTRACT THAT THE SCHOOL ~~[DISTRICT]~~ SUBMITTED FOR
8 THE IMMEDIATELY PRECEDING YEAR. AN AFFIDAVIT SUBMITTED PURSUANT TO THIS
9 SUBDIVISION MUST BE SUBMITTED NOT LATER THAN THIRTY DAYS AFTER THE
10 ANNIVERSARY OF THE DATE ON WHICH THE SCHOOL ~~[DISTRICT]~~ ENTERED INTO THE
11 CONTRACT.

12 B. THE DEPARTMENT SHALL:

13 1. POST ALL CONTRACTS THAT ARE SUBMITTED PURSUANT TO SUBSECTION A
14 OF THIS SECTION ON THE DEPARTMENT'S WEBSITE. THE DEPARTMENT MAY NOT
15 REMOVE A CONTRACT THAT IS POSTED PURSUANT TO THIS SUBSECTION UNTIL AT
16 LEAST FIVE YEARS AFTER THE DATE ON WHICH THE EMPLOYMENT OF ~~[THE~~
17 ~~SUPERINTENDENT, ASSISTANT SUPERINTENDENT, ASSOCIATE SUPERINTENDENT OR~~
18 ~~CHIEF FINANCIAL OFFICER]~~ [THAT INDIVIDUAL] IS TERMINATED. THE DEPARTMENT
19 MAY REDACT PERSONALLY IDENTIFIABLE INFORMATION THAT IS EXEMPT FROM PUBLIC
20 DISCLOSURE AS A MATTER OF LAW BEFORE POSTING AN EMPLOYMENT CONTRACT ON THE
21 DEPARTMENT'S WEBSITE.

22 2. CREATE A SEARCHABLE ONLINE DATABASE THAT IS POSTED ON THE
23 DEPARTMENT'S WEBSITE AND THAT CONTAINS, AT A MINIMUM, THE FOLLOWING
24 INFORMATION FROM EACH CONTRACT THAT IS SUBMITTED PURSUANT TO SUBSECTION A
25 OF THIS SECTION:

26 (a) THE ~~[SCHOOL DISTRICT'S]~~ [SCHOOL'S] NAME.

27 (b) THE BASE SALARY FOR EACH ~~[SUPERINTENDENT, ASSISTANT~~
28 ~~SUPERINTENDENT, ASSOCIATE SUPERINTENDENT AND CHIEF FINANCIAL OFFICER]~~
29 [INDIVIDUAL] WHO IS EMPLOYED BY THE SCHOOL ~~[DISTRICT]~~ [IN A POSITION
30 DESCRIBED IN SUBSECTION A OF THIS SECTION].

31 (c) THE TOTAL AMOUNT OF PERFORMANCE BASED PAY THAT THE SCHOOL
32 ~~[DISTRICT GOVERNING BOARD]~~ AWARDS TO EACH ~~[SUPERINTENDENT, ASSISTANT~~
33 ~~SUPERINTENDENT, ASSOCIATE SUPERINTENDENT AND CHIEF FINANCIAL OFFICER]~~
34 [INDIVIDUAL WHO IS EMPLOYED BY THE SCHOOL IN A POSITION DESCRIBED IN
35 SUBSECTION A OF THIS SECTION].

36 (d) THE TOTAL AMOUNT OF EMPLOYER CONTRIBUTIONS FOR RETIREMENT
37 BENEFITS FOR EACH ~~[SUPERINTENDENT, ASSISTANT SUPERINTENDENT, ASSOCIATE~~
38 ~~SUPERINTENDENT AND CHIEF FINANCIAL OFFICER]~~ [INDIVIDUAL WHO IS EMPLOYED BY
39 THE SCHOOL IN A POSITION DESCRIBED IN SUBSECTION A OF THIS SECTION].

40 (e) THE TOTAL AMOUNT OF STIPENDS PAID TO EACH ~~[SUPERINTENDENT,~~
41 ~~ASSISTANT SUPERINTENDENT, ASSOCIATE SUPERINTENDENT AND CHIEF FINANCIAL~~
42 ~~OFFICER]~~ [INDIVIDUAL] WHO IS EMPLOYED BY THE SCHOOL ~~[DISTRICT]~~ [IN A
43 POSITION DESCRIBED IN SUBSECTION A OF THIS SECTION], DISAGGREGATED BY THE
44 PURPOSE OR TYPE OF STIPEND.

1 (f) THE TOTAL HOURS OF PERSONAL LEAVE AND PAID TIME OFF THAT ARE
2 AWARDED TO EACH ~~[SUPERINTENDENT, ASSISTANT SUPERINTENDENT, ASSOCIATE~~
3 ~~SUPERINTENDENT AND CHIEF FINANCIAL OFFICER]~~ [INDIVIDUAL WHO IS EMPLOYED BY
4 THE SCHOOL IN A POSITION DESCRIBED IN SUBSECTION A OF THIS SECTION].

5 (g) WHETHER EACH ~~[SUPERINTENDENT, ASSISTANT SUPERINTENDENT,~~
6 ~~ASSOCIATE SUPERINTENDENT AND CHIEF FINANCIAL OFFICER]~~ [INDIVIDUAL WHO IS
7 EMPLOYED BY THE SCHOOL IN A POSITION DESCRIBED IN SUBSECTION A OF THIS
8 SECTION] IS ENTITLED TO PAYMENT FOR UNUSED PERSONAL LEAVE AND PAID TIME
9 OFF.

10 (h) THE TOTAL AMOUNT OF EMPLOYER CONTRIBUTIONS FOR HEALTH INSURANCE
11 PREMIUMS FOR THE SPOUSE AND DEPENDENTS OF EACH ~~[SUPERINTENDENT, ASSISTANT~~
12 ~~SUPERINTENDENT, ASSOCIATE SUPERINTENDENT AND CHIEF FINANCIAL OFFICER]~~
13 [INDIVIDUAL WHO IS EMPLOYED BY THE SCHOOL IN A POSITION DESCRIBED IN
14 SUBSECTION A OF THIS SECTION].

15 (i) THE TOTAL AMOUNT OF EMPLOYER CONTRIBUTIONS FOR LIFE INSURANCE
16 FOR EACH ~~[SUPERINTENDENT, ASSISTANT SUPERINTENDENT, ASSOCIATE~~
17 ~~SUPERINTENDENT AND CHIEF FINANCIAL OFFICER]~~ [INDIVIDUAL WHO IS EMPLOYED BY
18 THE SCHOOL IN A POSITION DESCRIBED IN SUBSECTION A OF THIS SECTION].

19 C. [NOTWITHSTANDING SECTION 15-2404.] EACH SCHOOL [DISTRICT
20 GOVERNING BOARD] SHALL POST ON THE [SCHOOL DISTRICT'S] [SCHOOL'S] WEBSITE
21 A COPY OF EACH CONTRACT AND ATTESTATION THAT THE [GOVERNING BOARD]
22 [SCHOOL] SUBMITS TO THE DEPARTMENT PURSUANT TO SUBSECTION A OF THIS
23 SECTION. A SCHOOL [DISTRICT] MAY NOT REMOVE A CONTRACT THAT IS POSTED
24 PURSUANT TO THIS SUBSECTION UNTIL AT LEAST FIVE YEARS AFTER THE DATE ON
25 WHICH THE EMPLOYMENT OF [THE SUPERINTENDENT, ASSISTANT SUPERINTENDENT,
26 ASSOCIATE SUPERINTENDENT OR CHIEF FINANCIAL OFFICER] [THAT INDIVIDUAL] IS
27 TERMINATED. A SCHOOL [DISTRICT] MAY REDACT PERSONALLY IDENTIFIABLE
28 INFORMATION THAT IS EXEMPT FROM PUBLIC DISCLOSURE AS A MATTER OF LAW
29 BEFORE POSTING AN EMPLOYMENT CONTRACT ON THE [SCHOOL DISTRICT'S]
30 [SCHOOL'S] WEBSITE.

31 D. ON OR BEFORE DECEMBER 1 OF EACH YEAR, THE DEPARTMENT OF
32 EDUCATION SHALL COMPILE A REPORT THAT INCLUDES ALL OF THE FOLLOWING
33 INFORMATION FOR EACH SCHOOL ~~[DISTRICT]~~ IN THIS STATE AND SHALL POST THE
34 REPORT ON THE DEPARTMENT'S WEBSITE:

35 ~~[1. IF THE SCHOOL DISTRICT EMPLOYS A SUPERINTENDENT PURSUANT TO~~
36 ~~SECTION 15-503:~~

37 ~~(a)~~ [1.] THE BASE SALARY OF [THE SUPERINTENDENT] [EACH INDIVIDUAL
38 WHO IS EMPLOYED BY THE SCHOOL IN A POSITION DESCRIBED IN SUBSECTION A OF
39 THIS SECTION].

40 ~~(b)~~ [2.] A LIST OF ALL EMPLOYEE BENEFITS THAT [THE
41 SUPERINTENDENT] [EACH INDIVIDUAL WHO IS EMPLOYED BY THE SCHOOL IN A
42 POSITION DESCRIBED IN SUBSECTION A OF THIS SECTION] MAY RECEIVE PURSUANT
43 TO THE [SUPERINTENDENT'S] [INDIVIDUAL'S] EMPLOYMENT CONTRACT, INCLUDING,
44 IF APPLICABLE, THE MONETARY VALUE OF EACH BENEFIT.

1 ~~[(c)]~~ [3.] IF [THE SUPERINTENDENT] [ANY INDIVIDUAL WHO IS EMPLOYED
2 BY THE SCHOOL IN A POSITION DESCRIBED IN SUBSECTION A OF THIS SECTION] HAS
3 A CAR ALLOWANCE UNDER THE [SUPERINTENDENT'S] [INDIVIDUAL'S] EMPLOYMENT
4 CONTRACT, THE AMOUNT OF THE ALLOWANCE.
5 ~~[2. IF, PURSUANT TO SECTION 15-502 OR 15-503, THE SCHOOL DISTRICT~~
6 ~~EMPLOYS AN ASSISTANT SUPERINTENDENT, ASSOCIATE SUPERINTENDENT OR CHIEF~~
7 ~~FINANCIAL OFFICER, OR ANY COMBINATION OF ASSISTANT SUPERINTENDENTS,~~
8 ~~ASSOCIATE SUPERINTENDENTS AND CHIEF FINANCIAL OFFICERS:~~
9 ~~(a) THE BASE SALARY OF EACH ASSISTANT SUPERINTENDENT, ASSOCIATE~~
10 ~~SUPERINTENDENT AND CHIEF FINANCIAL OFFICER:~~
11 ~~(b) A LIST OF ALL EMPLOYEE BENEFITS THAT EACH ASSISTANT~~
12 ~~SUPERINTENDENT, ASSOCIATE SUPERINTENDENT AND CHIEF FINANCIAL OFFICER MAY~~
13 ~~RECEIVE PURSUANT TO THE INDIVIDUAL'S EMPLOYMENT CONTRACT, INCLUDING, IF~~
14 ~~APPLICABLE, THE MONETARY VALUE OF EACH BENEFIT:~~
15 ~~(c) IF THE ASSISTANT SUPERINTENDENT, ASSOCIATE SUPERINTENDENT OR~~
16 ~~CHIEF FINANCIAL OFFICER HAS A CAR ALLOWANCE UNDER THE INDIVIDUAL'S~~
17 ~~EMPLOYMENT CONTRACT, THE AMOUNT OF THE ALLOWANCE.]~~
18 [E. FOR THE PURPOSES OF THIS SECTION, "SCHOOL" MEANS ANY OF THE
19 FOLLOWING:
20 1. A SCHOOL DISTRICT.
21 2. A CHARTER SCHOOL.
22 3. A COUNTY ACCOMMODATION SCHOOL.
23 4. A QUALIFIED SCHOOL AS DEFINED IN SECTION 15-2401 THAT CHARGES
24 TUITION AND FEES TO ONE OR MORE QUALIFIED STUDENTS AS DEFINED IN SECTION
25 15-2401.]

26 Enroll and engross to conform
27 Amend title to conform

EVA DIAZ

2075FloorDIAZ1.docx
03/09/2026
8:00 AM
C: VS
130UWPLKQ